

India Leave Policy

Comprehensive Policy for Employees in India

1. Introduction

Maintaining a work environment that values employee well-being and respects statutory regulations is essential to our organization. This India Leave Policy has been developed with a deep understanding of the diverse needs of our workforce in India. The policy not only ensures compliance with local labor laws but also aims to support employees' personal, family, and health-related responsibilities. The guidelines herein will help employees understand their leave entitlements, the process for availing leave, and the supporting documentation required for various scenarios.

2. Policy Objectives

Our policy is rooted in three primary objectives:

- To ensure transparent and equitable access to leave entitlements for all employees.
- To foster a healthy work-life balance.
- To align with all applicable Indian labor statutes and adapt to evolving workforce needs.

The policy is regularly reviewed and updated to address emerging legal requirements, industry benchmarks, and employee feedback.

3. Applicability and Scope

This policy applies to all permanent, full-time, and part-time employees working at our locations in India. It covers all leave types currently offered by the company as well as the procedures for requesting, approving, and recording leave.

4. Overview of Leave Types

The company offers a variety of leave options to accommodate the distinct needs of its employees. Below is a summary table providing a high-level overview of each leave type, with subsequent sections elaborating on details, eligibility, procedures, and compliance.

Type of Leave	Entitlement	Eligibility	Carry Forward	Encashment
Earned/Privilege Leave (EL/PL)	15 days per year	All employees	Up to 30 days	Yes
Casual Leave (CL)	7 days per year	All employees	No	No
Sick Leave (SL)	7 days per year	All employees	No	No
Maternity Leave	26 weeks	Female employees	No	No
Paternity Leave	5 days	Male employees	No	No
Adoption Leave	Same as maternity/paternity leave	Employees adopting child under 3 months	No	No
Bereavement Leave	3 days	All employees	No	No
Public Holidays	Minimum 10 per year	All employees	Not applicable	Not applicable

5. Detailed Leave Type Explanations

5.1 Earned/Privilege Leave (EL/PL)

Earned Leave, sometimes called Privilege Leave, is accrued throughout the year and is intended for planned absences such as vacations or extended personal matters. Employees accumulate leave monthly, and balances can be carried forward up to a capped limit. Leave encashment is allowed as per company policy and applicable laws, typically during separation or under special circumstances. It is encouraged that employees plan their EL in advance to avoid disruptions in workflow.

5.2 Casual Leave (CL)

Casual Leave is allocated each calendar year and is meant for unforeseen or urgent personal needs. It cannot be carried forward or encashed. Employees should notify their manager as soon as possible and file their request via the HR portal. Where possible, prior intimation is appreciated to minimize operational impact.

5.3 Sick Leave (SL)

Sick Leave supports employees during periods of illness or incapacity. Up to 7 days are provided annually, with a medical certificate required for absences exceeding three consecutive days. Unused sick leave lapses at the end of the year.

5.4 Maternity Leave

In compliance with the Maternity Benefit (Amendment) Act, 2017, female employees are entitled to 26 weeks of paid maternity leave. This can be availed up to 8 weeks before the expected date of delivery. In the event of miscarriage or medical termination, 6 weeks' leave is granted. The policy also considers provision for commissioning and adopting mothers as per statutory guidelines.

5.5 Paternity Leave

Male employees are eligible for 5 days of paid paternity leave, to be availed within 15 days of childbirth or adoption. This leave supports fathers during the critical early period of parenthood, fostering family bonding.

5.6 Adoption Leave

Employees adopting a child below the age of 3 months are eligible for leave equivalent to the respective maternity or paternity leave, based on their gender and relationship to the child.

5.7 Bereavement Leave

Bereavement leave offers support during the loss of a close family member (spouse, child, parent, or sibling). Employees are entitled to up to 3 days of paid leave. Compassion and discretion are exercised during such periods.

5.8 Public Holidays

The company observes at least 10 public holidays annually, which are declared at the beginning of each year based on regional and cultural considerations.

6. Leave Application and Approval Process

The steps for applying for leave are outlined below for clarity and ease of reference. Timely leave planning is encouraged to ensure smooth workflow and business continuity.

Step	Description
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1	Employee submits leave request via HR portal or in writing.
2	Reporting manager reviews and approves/rejects the request based on business needs.
3	HR updates leave records and, for certain leaves, verifies documentation (e.g., medical certificate, maternity certificate).
4	Employee is notified of approval status.

In emergency situations such as sudden illness or a family emergency, employees must inform their manager at the earliest opportunity and formalize the application as soon as possible.

7. Common Leave Scenarios

The following examples illustrate how the leave policy applies to a range of real-life circumstances:

Scenario	Recommended Leave Type	Required Documents	Remarks
Planned family vacation	Earned Leave	Leave application	Plan in advance to enable workflow management
Sudden illness	Sick Leave	Medical certificate if absence >3 days	Inform supervisor as early as possible
Birth of a child (female employee)	Maternity Leave	Medical certificate	Apply at least 8 weeks prior to due date
Birth of a child (male employee)	Paternity Leave	Proof of birth/adoption	Avail within 15 days of birth/adoption
Death in the family	Bereavement Leave	Notification	HR may request supporting details if required
Adoption of a child (under 3 months)	Adoption Leave	Adoption papers, legal documents	Leave equivalent to maternity/paternity leave
Unplanned urgent personal work	Casual Leave	Leave application	Advance intimation preferred, if feasible

8. Additional Guidelines and Special Cases

8.1 Leave Encashment and Carry Forward

Earned Leave can be carried forward up to 30 days; any excess lapses unless encashment is permitted by policy. Leave encashment typically occurs at separation or as part of a special encashment scheme and is processed in accordance with statutory rules.

8.2 Leave During Notice Period

Employees serving notice are generally discouraged from taking long leaves unless due to compelling personal or medical reasons, subject to management approval.

8.3 Unauthorised Absence

Absence without prior approval for more than three working days may be treated as unauthorised and can attract disciplinary action, including wage deductions or termination, in line with company procedures and Indian labor law.

8.4 Festive and Restricted Holidays

In addition to the core public holidays, employees may have the option to avail restricted holidays for festivals of their choice from a pre-declared list. These are subject to advance approval.

8.5 Special Leave

Special Leave may be granted for extraordinary circumstances, such as jury duty, blood donation, or participation in recognized sporting events. The duration and conditions will be defined on a case-by-case basis.

9. Compliance with Indian Labor Laws

Our leave policy strictly adheres to the Shops and Establishments Act, Factories Act, Maternity Benefit Act, and other relevant statutes. Any policy clause that conflicts with statutory provisions will defer to the law in force. Regular legal reviews ensure company policies reflect current requirements.

10. Policy Review and Amendment Procedure

The Human Resources department is responsible for periodic policy reviews, taking into account legal updates, business needs, and employee suggestions. Amendments are communicated through official channels and updated in the employee handbook.

11. Frequently Asked Questions (FAQs)

- Q: Can unused sick leave be encashed or carried forward?
- A: No, unused sick leave lapses at year-end and cannot be encashed or carried forward.
- Q: What if a public holiday falls during my approved earned leave?
- A: Public holidays are not counted as part of earned leave.
- Q: Is leave approval guaranteed?
- A: Leave approval is subject to business needs and manager's discretion.
- Q: Can casual leave be combined with earned leave?
- A: Yes, subject to approval, both can be taken together if justified.

12. Contact and Support

For all concerns, clarifications, or exceptional leave requests, employees are encouraged to consult the Human Resources Department. Support is available via email, direct consultation, or through the HR portal.

13. Conclusion

Our India Leave Policy is designed to empower employees to balance their professional and personal commitments effectively. It reflects our commitment to employee well-being, legal compliance, and operational excellence. Employees are urged to familiarize themselves with this document, adhere to the guidelines, and reach out for support as needed.